

- (c) in a case where the local authority are not themselves the undertakers, the local authority ; or
- (d) in a case where the local authority are not themselves the undertakers and the area of supply is situate wholly or partly within the county of London, the London County Council,

at any time after the expiration of three years after the confirmation of the special order make a representation to the Minister that the prices or methods of charge stated in the special order or approved by the Minister ought to be altered, the Minister, after such inquiry as he may think fit, may make an order varying the prices or methods of charge stated in the special order or so approved as aforesaid, or substituting other prices or methods of charge in lieu thereof, and the prices or methods of charge so varied or substituted shall have effect on and after such day as may be mentioned in the order as if they had been stated in the special order :

Provided also that the prices and methods of charge for the time being in force may be altered in like manner at any time after the expiration of any or every period of three years after they were last altered.

CHAPTER 47.

An Act to amend the Law as respects certain matters in connection with which the consent of the Railway and Canal Commission is required.

[4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where before the thirty-first day of August, nineteen hundred and twenty-two, an application has been made to the Railway and Canal Commission under subsection (3) of section six of the Defence of the Realm (Acquisition of Land) Act, 1916 (hereinafter referred to as the principal Act), for the consent of the Commission to any highway being kept closed after that date, the highway may be kept closed until the application has been disposed of by the Commission, but not for more

Provisions as to consents by the Railway and Canal Commission under 6 & 7 Geo. 5. c. 63.

than six months after the said thirty-first day of August unless the Commission in any particular case allow a longer time; and where the Commission on any such application consent to the highway being kept closed for a limited period, the Commission may subsequently, on any application being made at any time before the expiration of such limited period, extend that period.

(2) Where an application has before the twenty-eighth day of February, nineteen hundred and twenty-three, been made to the Railway and Canal Commission for their consent to the occupying department continuing in the possession of land, and the application is not disposed of by the Commission before the thirty-first day of August, nineteen hundred and twenty-three, the occupying department may continue in possession of the land until the application has been disposed of, but not for more than six months after the thirty-first day of August, nineteen hundred and twenty-three, unless the Commission in any particular case allow a longer time: Provided that this subsection shall not apply to commons or common lands.

(3) Where the consent of the Railway and Canal Commission is necessary to the acquisition of any land under section three of the principal Act, and an application is made to the Commission for their consent before the expiration of the period within which the power of acquisition must be exercised, and the Commission give their consent, the power of acquisition may be exercised if notices to treat are served within three months after the consent of the Commission is given, notwithstanding that the time within which the power must be exercised under the said section has elapsed.

Short title.

2. This Act may be cited as the Railway and Canal Commission (Consents) Act, 1922.
